

Petition to Expunge a Misdemeanour Conviction, I.C. 35-38-9-2

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

This packet is prepared for one route under I.C. 35-38-9-2: the relief named at the top of this page.

What is in this packet

- Verified Petition for Expungement of Conviction Records - the document you file, required. Composed for you from Indiana authority and prefilled with the facts you gave.
- Order on the Verified Petition for Expungement of Conviction Records - the order you give the court to sign, required. Composed for you from Indiana authority and prefilled with the facts you gave.
- CCA-XP-0220-7008, the Section 2 conviction insert carrying the facts, findings and exhibit pages that the petition and the order both call for - filed together with the petition, required. Delivered exactly as Indiana Coalition for Court Access published it, 3 pages. The SHA-256 of that 3-page publication is 2c4aaf4a68b06f192e5f0c4b9bbfe0dd4c04b4b1f5e0fbab879bb450223e78f0. It arrives blank.
- CCA-GF-0120-3016, the Appearance by Unrepresented Person in Expungement Matter, which also carries the certificate of service to the county prosecutor - filed together with the petition, included only where its condition applies. Delivered exactly as Indiana Coalition for Court Access published it: 2 pages, taken from pages 1, 2 of the issuer's 15-page publication. The SHA-256 of that whole 15-page publication, not of the pages delivered here, is b04f2941c91f903e8b8a1718ff4f9bd9120f3744c97354fd810c296f89d041c5. It arrives blank.
- CCA-XP-0120-7002 Form ACR, the Notice of Exclusion of Confidential Information from Public Access - filed together with the petition, required. Delivered exactly as Indiana Coalition for Court Access published it: 1 page, taken from page 7 of the issuer's 15-page publication. The SHA-256 of that whole 15-page publication, not of the page delivered here, is b04f2941c91f903e8b8a1718ff4f9bd9120f3744c97354fd810c296f89d041c5. It arrives blank.
- Confidential Information Form, which carries the full Social Security number and is filed as a confidential document - filed together with the petition, required. Delivered exactly as Indiana Coalition for Court Access published it: 1 page, taken from page 8 of the issuer's 15-page publication. The SHA-256 of that whole 15-page publication, not of the page delivered here, is b04f2941c91f903e8b8a1718ff4f9bd9120f3744c97354fd810c296f89d041c5. It arrives blank.

The blank official forms, and what this packet does not do to them

The four supporting forms above are the issuer's own documents. This packet delivers them unchanged and writes nothing on them, so every blank on them is yours to complete by hand. This packet does not carry a field-by-field map of those four forms, and it does not tell you what each individual box on them means; work through them against the form's own printed instructions, and stop and get legal help wherever a box is not clear. The two documents this packet does prefill are the petition and the proposed order, and every blank left on those two is listed below.

What you must supply before filing

Check every prefilled fact against your own court record and your certified limited criminal history, and correct the packet where they disagree. The blanks below are deliberately empty and are yours to complete.

Document | Blank on the document | What you must supply

Verified Petition for Expungement of Conviction Records | Petitioner mailing address | your current mailing address, written by hand, so the court and the prosecuting attorney can reach you

Verified Petition for Expungement of Conviction Records | Petitioner telephone number and email address | the telephone number and email address you want the court to use

Verified Petition for Expungement of Conviction Records | Last four digits of the Social Security number | the last four digits of your Social Security number, and only the last four - the full number goes on the Confidential Information Form

Verified Petition for Expungement of Conviction Records | Every Indiana conviction in any county, and whether each is eligible yet | the full list from your certified limited criminal history, county by county, with the eligibility date of each

Verified Petition for Expungement of Conviction Records | Whether the offense involved serious bodily injury | the answer, taken from your own court record and from legal advice if it is not obvious

Verified Petition for Expungement of Conviction Records | Additional information the petitioner wants the court to know | anything else you want the court to know, in your own words

What you must obtain or confirm before filing (15 items)

- Obtain a document (required, required before filing): Obtain Certified limited criminal history from the Indiana State Police. Request a certified limited criminal history from the Indiana State Police. Confirm the current charge and turnaround at build time. Obtained from: Indiana State Police.
- Confirm an answer (required, required before filing): Check your answer to "List every conviction you have in Indiana, in any county, and whether each is eligible yet." against Certified limited criminal history from the Indiana State Police, and correct the packet if they disagree.
- Obtain a document (required, required before filing): Obtain Confirmation that all fines, fees, costs and restitution are satisfied. Ask the clerk for the balance on the cause number, including any restitution. Obtained from: Clerk of the court of conviction.
- Confirm an answer (required, required before filing): Check your answer to "Have you paid all fines, fees and court costs, and satisfied any restitution?" against Confirmation that all fines, fees, costs and restitution are satisfied, and correct the packet if they disagree.
- Obtain a document (conditional, required before filing): Obtain Written prosecutor consent. Ask the prosecuting attorney for written consent. Silence is not consent. Obtained from: Prosecuting attorney of the county of conviction. Condition: Required to file a Section 5 petition, and required to shorten a waiting period on any conviction track.
- Confirm an answer (conditional, required before filing): Check your answer to "Has the prosecuting attorney given written consent, either to shorten the waiting period or to allow the filing?" against Written prosecutor consent, and correct the packet if they disagree. Condition: Required to file a Section 5 petition, and required to shorten a waiting period on any conviction track.
- Complete a field (required, required before filing): Verification and signature - Petition, verification block.
- Complete a field (required, required before filing): Section classification - Petition, offence classification.

- Complete a field (required, required before filing): Additional-information narrative - Petition, additional information.
- Complete a field (required, required before filing): Full Social Security number - Confidential Information Form.
- Sign (required, required before filing): The petition is verified and signed by the petitioner.
- Pay a fee (required, required before filing): A civil filing fee applies to Sections 2 through 5. The amount, whether it is per county, and indigency waiver availability are unresolved.
- Apply for a fee waiver (conditional, required before filing): Unresolved. Indigency waiver availability has not been confirmed. Condition: Applies only when the participant cannot pay the filing fee.
- Serve a party (required): Service on the prosecuting attorney under the Trial Rules. The CCA appearance form carries a certificate of service to the county prosecutor; follow the form.
- File (required): File the verified petition, order, appearance, Notice of Exclusion and Confidential Information Form with a circuit or superior court in the county of conviction, as case type XP.

Where this is filed

- Venue: A circuit or superior court in the county of conviction. A person with convictions in more than one county files in each, and those filings count as one petition only if they fall inside a 365-day window. Case type XP under Administrative Rule 8(B)(3).
- Destination (court): Circuit or superior court in the county of conviction
- The petition is served on the prosecuting attorney under the Trial Rules. Where the prosecutor does not object or waives objection, the court may grant without a hearing under Sec. 35-38-9-9(a). A victim may submit an oral or written statement.
- Filing: File the verified petition, order, appearance, Notice of Exclusion and Confidential Information Form with a circuit or superior court in the county of conviction, as case type XP.

What it costs

- Fees: A civil filing fee applies to Sections 2 through 5. The amount, whether it is per county, and indigency waiver availability are unresolved.
- Fee waiver: Unresolved. Indigency waiver availability has not been confirmed.
- The record held here does not state the amount, whether it is charged per county, or whether an indigency waiver exists. This packet does not guess at any of the three. Ask the clerk of the court you are filing in for the current civil filing fee and for whatever waiver that court accepts.

Notice, objection and service

- Notice: The petition is served on the prosecuting attorney under the Trial Rules. A victim is entitled to submit an oral or written statement in support or opposition, with no right of cross-examination by the petitioner.

- Service: Service on the prosecuting attorney under the Trial Rules. The CCA appearance form carries a certificate of service to the county prosecutor; follow the form.

- The record held here does not state a deadline for the prosecuting attorney's response or a number of days between service and any hearing, so this packet states none.

Signing

- Signature: The petition is verified and signed by the petitioner.

- Notarization: none

What the committed record requires this packet to say (6 instructions)

- [packet_instruction] Never say records are destroyed. In Indiana expungement means records are sealed or restricted under Sec. 35-38-9-1(k). The Office of Judicial Administration states plainly that court records are not deleted or destroyed under I.C. 35-38-9.

- [packet_instruction] Put only the last four digits of the Social Security number on the petition. The full number goes on the Confidential Information Form, filed as a confidential document, accompanied by the Notice of Exclusion of Confidential Information from Public Access. Do not persist the full number.

- [packet_instruction] Disclose that the expungement case file is public until the order is granted.

- [scope_restriction] One petition per lifetime under Sec. 35-38-9-9(i). Petitions filed in separate counties count as one only if they land inside a single 365-day window. Build the eligibility calendar and the 365-day window optimiser before the petition generator; in Indiana the scheduling decision is worth more than the document.

- [scope_restriction] Put a hard gate in front of any conviction filing: where the participant has any conviction not yet eligible, surface Chastain v. State and the consequence of filing early before letting them proceed. Under Chastain a petitioner cannot use the liberal amendment rule to add records that were not yet eligible when the initial petition was filed, so filing now can permanently cost a record that ripens later. This is a delivery gate, not a generation blocker.

- [packet_instruction] On granting a conviction expungement the court shall also order the related arrest records expunged under Sec. Sec. 35-38-9-6(g) and 35-38-9-7(e). Tell the participant they do not file separately for those.

Fields deliberately left blank

- Sign and date the verification on the petition yourself, after reading it. The petition is verified, and signing it is an affirmation under the penalties for perjury.

- Do not sign, date or complete any part of the proposed order. It is delivered unexecuted, and its page prints "COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided." Every line listed below is printed on that order under the label shown here, and every one of them is the court's or the clerk's to complete:

- "Findings of the court on the verified petition" on the proposed order - the findings are the court's, made by a preponderance on the statutory conditions

- "Whether the petition is granted or denied" on the proposed order - granting or denying the petition is the court's decision and this build makes none of it

- "Ordered, adjudged and decreed paragraphs" on the proposed order - the decretal paragraphs are the court's judgment
- "Entities the court directs to seal or restrict records" on the proposed order - the sealing directives are the court's, and the related arrest records are ordered expunged by the same order under I.C. 35-38-9-6(g) and 35-38-9-7(e)
- "Date of the court order" on the proposed order - the court dates its own order
- "Signature of the judge on the order" on the proposed order - the judge signs if and when the court enters the order
- "Distribution list completed by the clerk" on the proposed order - distribution of a signed order is the clerk's act
- Leave the XP cause number and the filed-on stamp blank. The clerk supplies both when the petition is filed.

Stop self-help and get legal help (all 13 stop conditions the record holds)

- Stop 1 of 13: The prosecutor objects or files a notice in opposition.
- Stop 2 of 13: A victim submits a statement in opposition.
- Stop 3 of 13: The court sets a hearing.
- Stop 4 of 13: The person has convictions in more than one county and the 365-day window is already partly consumed.
- Stop 5 of 13: A conviction is not yet eligible and the person wants to file now, which is the Chastain trap.
- Stop 6 of 13: The person has already filed a Sections 2 through 5 petition.
- Stop 7 of 13: Classification between Sections 2, 3, 4 and 5 is unclear, or turns on whether an offence caused serious bodily injury.
- Stop 8 of 13: The person is a sex or violent offender or subject to registration.
- Stop 9 of 13: Fines, fees, costs or restitution are unpaid or disputed.
- Stop 10 of 13: Charges are pending anywhere, or the person is in a pretrial diversion programme.
- Stop 11 of 13: The record involves a commercial driver's licence and 49 C.F.R. 384.226.
- Stop 12 of 13: Immigration, firearm, licensing or CDL consequences are in play.
- Stop 13 of 13: The person wants to attack the underlying conviction rather than expunge it.

Hard eligibility boundaries the record states (4 exclusions)

- Convictions excluded by the statutory exclusion structure, which must be verified against the current text of Sec. 35-38-9-2 through 5.
- Charges pending anywhere.

- Unpaid fines, fees, court costs or unsatisfied restitution.
- A conviction within the applicable period, or within a shorter period the prosecutor agreed to.

Waiting periods:

- The date of conviction: 5 years, shortened by the prosecuting attorney's written consent

What the record does not settle (3 open questions)

- The amount of the civil filing fee for a Sections 2 through 5 petition, whether it is charged per county, and whether an indigency waiver is available. (impact: release_blocker; affects: filing_process)
- Whether the statewide exclusions the internal reference lists for Sections 2 through 5 - sex or violent offenders, official misconduct, homicide, human trafficking, two or more deadly-weapon felonies, elected officials - are stated in Sec. 35-38-9-2 through 5 or elsewhere. Verify each against the current text before the evaluator uses them. (impact: release_blocker; affects: eligibility_branch)
- Whether the current Coalition for Court Access petition still tracks the renumbered subsections. At least one county packet still cites the lifetime rule to Sec. 35-38-9-9(h). (impact: release_blocker; affects: correct_form)

What this packet is not

This built packet is review evidence. It is pending independent completeness verification, raster acceptance, visual review and counsel review. It is not approved for live use, it opens no route, and it is not legal advice.

Filing instructions - Petition to Expunge a Misdemeanour Conviction, I.C. 35-38-9-2

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

- Filing: File the verified petition, order, appearance, Notice of Exclusion and Confidential Information Form with a circuit or superior court in the county of conviction, as case type XP.
- Where: Circuit or superior court in the county of conviction. The petition is served on the prosecuting attorney under the Trial Rules. Where the prosecutor does not object or waives objection, the court may grant without a hearing under Sec. 35-38-9-9(a). A victim may submit an oral or written statement.
- Venue: A circuit or superior court in the county of conviction. A person with convictions in more than one county files in each, and those filings count as one petition only if they fall inside a 365-day window. Case type XP under Administrative Rule 8(B)(3).
- What the registry says about filing: File the verified petition, order, appearance, Notice of Exclusion and Confidential Information Form with a circuit or superior court in the county of conviction, as case type XP.
- What it costs: A civil filing fee applies to Sections 2 through 5. The amount, whether it is per county, and indigency waiver availability are unresolved.
- Fee waiver: Unresolved. Indigency waiver availability has not been confirmed.

- Service: Service on the prosecuting attorney under the Trial Rules. The CCA appearance form carries a certificate of service to the county prosecutor; follow the form.

What you file, in order:

- Verified Petition for Expungement of Conviction Records, from this packet, completed and signed by you.
- Order on the Verified Petition for Expungement of Conviction Records, from this packet, tendered unsigned and otherwise blank. Its page prints "COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided." Do not sign it, do not date it and do not fill in any of its lines; the participant instructions list every one of them and each belongs to the court or the clerk.
- CCA-XP-0220-7008, 3 pages, completed by hand.
- CCA-GF-0120-3016, 2 pages, completed by hand.
- CCA-XP-0120-7002 Form ACR, 1 page, completed by hand.
- Confidential Information Form, 1 page, completed by hand.

The expungement case file is public until the order is granted. Where the prosecuting attorney does not object or waives objection, the court may grant without a hearing under I.C. 35-38-9-9(a); a victim may submit an oral or written statement in support or opposition.